

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., *et al.*,
RESPONDENTS.

STATEMENT OF UNDISPUTED MATERIAL FACTS

FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) hereby submits its
Statement of Undisputed Material Facts:

1. In July of 2023, FTN and Complainant Airboss Defense Group (“ADG”) entered into a Settlement Agreement and Release (the “Settlement Agreement”). *See* APPX 001.
2. The Settlement Agreement was executed by an authorized representative of ADG on July 21, 2022 and an authorized representative of FTN on July 22, 2022. *See* APPX 006.
3. The Settlement Agreement was entered into in relation to case number 1:22-cv-01313-LKG, filed by FTN against ADG in the United States District Court for the District of Maryland. *See* APPX 003.
4. The Settlement Agreement contains a “Mutual Release and Discharge” releasing both parties from “all claims, demands, causes of action, obligations, liens, damages, losses, costs, attorneys’ fees, and expenses of any kind, known and unknow, fixed or contingent that either party may have or may acquire, or that may accrue in the future ... by reason

of any matter, cause, or thing arising out of or in any way related to the transactions giving rise to Freight Charges and/or Shoreside Charges.” APPX 005.

5. “Freight Charges” is defined in the Settlement Agreement as “unpaid freight and insurance charges ... as to approximately 571 containers of nitrile examination gloves, including 202 containers that were subject to a withhold release order.” APPX 003.
6. “Shoreside Charges” is defined in the Settlement Agreement as “storage, detention, demurrage, chassis, container, per diem charges, drayage, container drop fees, and other non-freight charges or fees.” APPX 003.

DATE: July 19, 2024

Respectfully submitted,



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*Attorneys for FedEx Trade Networks
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CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing document and referenced Appendix to the parties to this proceeding by depositing same in the United States mail, first class postage prepaid, and/or via email transmission, this 19th day of July, 2024.



David K. Monroe